

26PR00309 Estate of Mary Etta Hall

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-08-11

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of Mary Etta Hall

Case Number

26PR00309

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 08/11/2026 - 09:00

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

Appearances required.

After review of all documents filed, up to and including the supplement filed on August 7, 2026, the following is noted for the Court at the hearing:

Trust Instrument. The Petition and accompanying documents reveal the existence of a trust. A copy of the trust was required to be submitted in the Probate Notes. In response to the notes, a copy of a trust was submitted that is not executed (missing dates and signature), and is incomplete (missing pages). If this is the only copy of the trust, the trust likely constitutes a failed transfer (See Prob. Code, Div. 9, Pt. 2, Ch. 1), and the distribution provisions of the will likely create a failed transfer that

results in intestacy. (See Prob. Code, § 21111.)

If a complete and properly executed copy of the trust exists, that copy and all accompanying amendments, must be submitted for review, to ensure compliance with the Decedent's testamentary intent and notice to individuals who might otherwise not be given notice. (Local Rule, 1791(c).)

It is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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